

Court No. - 21

Case :- WRIT - C No. - 8303 of 2012

Petitioner :- Kumar Audogic Vikas Pvt. Ltd.

Respondent :- Mukhya Abhiyanta Varanasi And Another

Petitioner Counsel :- S.D. Ojha

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

Put up on 22/2/2012, as fresh.

Order Date :- 14.2.2012

SB

Court No. - 21

Case :- WRIT - C No. - 8303 of 2012

Petitioner :- Kumar Audogic Vikas Pvt. Ltd.

Respondent :- Mukhya Abhiyanta Varanasi And Another

Petitioner Counsel :- S.D. Ojha

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

In RE: Amendment Application of 2012

Amendment application is allowed as prayed.

Petitioner may carry out amendment within two days.

Put up on Tuesday i.e. 28.2.2012 as fresh.

Order Date :- 22.2.2012

Atul kr. sri.

Court No. - 21

Case :- WRIT - C No. - 8303 of 2012

Petitioner :- Kumar Audogic Vikas Pvt. Ltd.

Respondent :- Mukhya Abhiyanta Varanasi And Another

Petitioner Counsel :- S.D. Ojha

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

As prayed put up day after tomorrow i.e. 1.3.2012 as fresh.

Petitioner may carry out amendment by the next date.

Order Date :- 28.2.2012

Atul kr. sri.

Court No. - 21

Case :- WRIT - C No. - 8303 of 2012

Petitioner :- Kumar Audogic Vikas Pvt. Ltd.

Respondent :- Mukhya Abhiyanta Varanasi And Another

Petitioner Counsel :- S.D. Ojha

Respondent Counsel :- H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

As prayed by Sri H.P. Dubey, put up on 13th March, 2012 as fresh.

Order Date :- 2.3.2012

Rakesh

Court No. - 9

Case :- WRIT - C No. - 8303 of 2012

Petitioner :- Kumar Audogic Vikas Pvt. Ltd.

Respondent :- Mukhya Abhiyanta Varanasi And Another

Petitioner Counsel :- S.D. Ojha

Respondent Counsel :- H.P. Dube

Hon'ble Yatindra Singh,J.

Hon'ble B. Amit Sthalekar,J.

Sri H. P. Dube, counsel for the opposite party No.2 has filed counter affidavit, it is taken on record. The counsel for the petitioner is granted three weeks' time to file rejoinder affidavit.

List thereafter for admission.

The Counsel for the petitioner submits that:

- The property was auctioned for arrears of salary of the employees of the erstwhile owner on 18.11.2011;
- The petitioner purchased the property in the public auction and thereafter the sale deed was executed on 23.11.2011;
- The property was given to the petitioner free from all encumbrances and dues;
- The power corporation can realize its arrears from the sale consideration or the erstwhile owners only and not against the petitioners;
- The power Corporation cannot refuse to grant electric connection on the ground that there are electric dues against the erstwhile owner.

The electricity dues are to the tune of Rs.2,30,601/- . In case, the petitioner gives a bank guarantee for the same, the respondents will provide electricity connection to the petitioner immediately . The bank guarantee will be subject to the decision of the writ petition.

It is clarified that the petitioner will be liable to pay future dues as and when they arise.

Order Date :- 13.3.2012/Pr/-

Court No. - 29

Case :- WRIT - C No. - 8303 of 2012

Petitioner :- Kumar Audogic Vikas Pvt. Ltd.

Respondent :- Mukhya Abhiyanta Varanasi And Another

Counsel for Petitioner :- S.D. Ojha

Counsel for Respondent :- H.P. Dube

Hon'ble Tarun Agarwala,J.

Hon'ble Ashok Kumar,J.

Passed over on the illness slip of Sri S.D. Ojha,
learned counsel for the petitioner.

Order Date :- 24.8.2017

S.S.

(Ashok Kumar, J.)

(Tarun Agarwala, J.)

Court No. - 32

Case :- WRIT - C No. - 8303 of 2012

Petitioner :- Kumar Audogic Vikas Pvt. Ltd.

Respondent :- Mukhya Abhiyanta Varanasi And Another

Counsel for Petitioner :- S.D. Ojha

Counsel for Respondent :- H.P. Dube

Hon'ble Arvind Kumar Tripathi,J.

Hon'ble Salil Kumar Rai,J.

Pass over on the illness slip of Mr. S. D. Ojha, learned counsel for the petitioner.

List in the next cause list.

Order Date :- 15.12.2017

Pramod

Court No. - 40

Case :- WRIT - C No. - 8303 of 2012

Petitioner :- Kumar Audogic Vikas Pvt. Ltd.

Respondent :- Mukhya Abhiyanta Varanasi And Another

Counsel for Petitioner :- S.D. Ojha

Counsel for Respondent :- H.P. Dube

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Harsh Kumar,J.

The petitioner purchased the premises in question and according to him it was free from all encumbrances. A fresh electricity connection was denied to the petitioner on the ground that there were electricity dues against the previous owner. The petitioner aggrieved by this action of the Executive Engineer filed this writ petition and an interim order was passed on 13.3.2012 directing the petitioner to furnish a bank guarantee for the amount which was recoverable as arrears of electricity dues, whereupon the petitioner shall be granted a fresh connection. The bank guarantee was made subject to the decision of the writ petition.

According to the petitioner, a fresh connection has been granted and a counter affidavit has been filed by the respondents contending that in view of the provisions under the U.P. Electricity Supply Code, 2005 viz., Clause 4.3, no fresh connection can be granted in the same premises against which there are electricity dues.

From the counter affidavit, we find that the respondent electricity department through the Executive Engineer raised a demand against the previous owner requesting the District Magistrate, Chandauli to proceed with the recovery of the amount of electricity dues vide letter dated 22.12.2011. These dues were against the erstwhile owner whose property was auctioned that has been purchased by the petitioner.

There is nothing on record to indicate as to whether any such demand raised by the electricity

department has been recovered from the erstwhile owner through any recovery proceedings or otherwise or not. The information to this effect is necessary inasmuch as the electricity department would be entitled to receive the amount only when it has not been already realized from the erstwhile owner.

Shri Mehboob Ahmed, Advocate who now represents the respondent nos.1 and 2 shall obtain instructions from the second respondent about the current status of any such recovery from the erstwhile owner and inform the Court accordingly, for which he is granted two weeks time.

Let the matter come up after two weeks, showing the name of Shri Mehboob Ahmed, as counsel for respondent.

Order Date :- 4.10.2018

VS

Court No. - 21

Case :- WRIT - C No. - 8303 of 2012

Petitioner :- Kumar Audogic Vikas Pvt. Ltd.

Respondent :- Mukhya Abhiyanta Varanasi And Another

Counsel for Petitioner :- S.D. Ojha

Counsel for Respondent :- Mahboob Ahmad

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ram Manohar Narayan Mishra,J.

1. Learned counsel for the petitioner prays for and is granted two weeks' time to file rejoinder affidavit.
2. List immediately thereafter.

(R.M.N.Mishra, J.) (Manoj Kumar Gupta, J.)

Order Date :- 30.7.2025

Amit



2025:AHC:150445-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 8303 of 2012

Kumar Audogic Vikas Pvt. Ltd.

.....Petitioner(s)

Versus

Mukhya Abhiyanta Varanasi And Another

.....Respondent(s)

Counsel for Petitioner(s)	:	S.D. Ojha
Counsel for Respondent(s)	:	Mahboob Ahmad

Court No. - 21

HON'BLE MANOJ KUMAR GUPTA, J.
HON'BLE RAM MANOHAR NARAYAN MISHRA, J.

1. This case is listed under the caption 'Oldest Pending Cases in this High Court, for Priority Hearing'.
2. None present to press the petition.
3. **Dismissed** for want of prosecution.

(Ram Manohar Narayan Mishra,J.) (Manoj Kumar Gupta,J.)
August 27, 2025
Ankit.